

Smt. Lataa Nawani W/O Himanshu Nanwani, ... vs Himanshu Nawani S/O Ashok Nanwani on 6 August, 2021

Author: Rameshwar Vyas

Bench: Rameshwar Vyas

HIGH COURT OF JUDICATURE FOR RAJASTHAN
BENCH AT JAIPUR

S.B. Civil Transfer Application No. 43/2021

Smt. Lataa Nawani W/o Himanshu Nanwani, D/o Ishawar Chand
Devnani, Aged About 32 Years, R/o A- 55, Shankar Nagar, Near
P.F. Office, Jodhpur (Raj.)

----Petitioner

Versus

Himanshu Nawani S/o Ashok Nanwani, Aged About 35 Years, R/o
Plot No. -3, Sindhi Colony, Bani Park, Jaipur (Raj.)

----Respondent

For Petitioner(s) : Mr. Pawan Verma on behalf of Mr. Ghanshyam Dass For Respondent(s) : Mr. Govind Sharma HON'BLE MR. JUSTICE RAMESHWAR VYAS Order 06/08/2021 Instant transfer application under Section 24 CPC seeking transfer of application under Section 9 of the Hindu Marriage Act filed by husband bearing case No.842/2020 : Himanshu Nawani Vs. Latta Nawani, pending in Family Court No.1, Jaipur Metropolitan, Jaipur to the Family Court, Jodhpur has been filed by the wife, petitioner herein.

As per averments made in the petition, marriage between the parties was solemnized on 10.02.2012 at Jodhpur. Petitioner is resident of Jodhpur; petitioner has been treated with cruelty by her husband, she was beaten repeatedly by her husband. She left her matrimonial home and lodged an FIR against the respondent and her in-laws for the offences under Sections 498A, 406, 323 & 354 IPC at police station Mahila Thana, Jodhpur City West.

(2 of 3) [CTA-43/2021] Petitioner is a poor lady having no source of income; she is unable to maintain herself and cannot bear the litigation expenses. Respondent filed an application under Section 9 of the Hindu Marriage Act, which is pending in Family Court, Jaipur. Petitioner is not in a position to attend the Court proceedings at Jaipur, as she is already attending the Court proceedings at Jodhpur and preparing for competitive examinations so that she can make herself independent. Respondent has filed the suit only to harass the petitioner. Being a lady, great hardship would be caused to the petitioner by attending the Court proceeding at Jaipur; Jaipur is about 360 Km far from Jodhpur. Apart from this, petitioner is under reasonable apprehension of mishappening with her at Jaipur, as respondent has given threatening to petitioner so many times. In such compelling circumstances, petitioner preferred this transfer application with the prayer to transfer the case pending before the Family Court, Jaipur Metropolitan, Jaipur No.1 to Family Court, Jodhpur City,

District Jodhpur.

In reply to this application, allegations made against the respondent have been denied. It is averred that respondent is suffering from disease of epilepsy and is continuously under treatment at Jaipur. In these circumstances, he is not in a position to go alone at a distant places; nobody in his family is available to go with him to Jodhpur.

Heard learned counsel for the parties and perused the record.

It is not in dispute that the petitioner against whom application under Section 9 of the Hindu Marriage Act has been filed is resident of Jodhpur. It is also not in dispute that the marriage between the parties was solemnized at Jodhpur. As per (3 of 3) [CTA-43/2021] averments made in the petition, petitioner has no source of income. In reply to the petition, respondent has not averred that petitioner is in employment. The distance between Jaipur and Jodhpur is about 350 Km. Though, respondent has stated in his reply that he is suffering from epilepsy and is continuously under treatment at Jodhpur, no document regarding his treatment has been filed, so it cannot be presumed that he is unable to travel from Jaipur to Jodhpur. No proposal has been made on behalf of the respondent to bear the litigation and travelling expenses to be incurred by wife to defend herself while coming to Jaipur.

In the above circumstances, the balance of convenience is in favour of the wife. It would be in the interest of justice that application filed under Section 9 of the Hindu Marriage Act, presently pending at Jaipur may be heard and decided by the Family Court, Jodhpur.

Consequently, the instant transfer petition is allowed. The case No.842/2020 : Himanshu Nawani Vs. Lataa Nawani, pending before the Family Court No.1, Jaipur metropolitan is ordered to be transferred to Family Court, Jodhpur.

Let the parties may appear before the Family Court, Jodhpur on 31.08.2021 and thereafter, Family Court, Jodhpur would regulate the hearing.

A copy of this order be sent to Family Court No.1, Jaipur Metropolitan, Jaipur and also to the Family Court, Jodhpur for necessary compliance.

(RAMESHWAR VYAS),J 24/ANIL Powered by TCPDF (www.tcpdf.org)